

**Before the
Federal Maritime Commission**

Docket No. 24-17

Samsung Electronics America, Inc.
v.
Orient Overseas Container Line, Limited
and OOCL (Europe) Ltd.
v.
Samsung Electronics Company, Ltd.

**UNOPPOSED MOTION FOR LEAVE TO FILE AMENDED THIRD PARTY
COMPLAINT AND SUSPEND TIME TO RESPOND TO THIRD PARTY
RESPONDENT’S MOTION TO DISMISS**

On September 8, 2025, the Third-Party Respondent, Samsung Electronics Company, Ltd. (“SEC” or “Third Party Respondent”), filed a Motion to Dismiss the Third-Party Complaint. The rules of the Federal Maritime Commission, 46 C.F.R. 502.70(b), require that a response to such a dispositive motion must be served and filed within fifteen (15) days after the date of service of the motion, in this case, September 23, 2025.

Counsel for Orient Overseas Container Line, Limited and OOCL (Europe) Ltd. (“OOCL” or “Third-Party Complainants”) and counsel for SEC conferred in person on September 12, 2025, and again via email on September 17, 2025 regarding the Motion to Dismiss and OOCL’s Response.

Counsel for OOCL advised that a Response to SEC’s Motion to Dismiss would include a request for leave to file an Amended Third-Party Complaint. Proceeding in this way would require the parties to fully brief, and the Presiding Officer to rule upon, SEC’s Motion to Dismiss; and if OOCL’s Response which would include a request for leave to file an Amended

Third-Party Complaint is granted, the parties would again brief, and the Presiding Officer rule upon, a motion to dismiss the Amended Third-Party Complaint. OOCL's counsel proposed to counsel for SEC, in order to preserve the time and effort of counsel and the Presiding Officer, that OOCL would seek leave to file an Amended Third-Party Complaint now; that OOCL would file an Amended Third-Party Complaint within seven (7) days of the Order; that SEC would be given twenty (20) days to file an Amended Motion to Dismiss; and, that consideration of the pending Motion to Dismiss, and the time for OOCL to respond to same, would be suspended pending the filing of the Amended Third Party Complaint and SEC's Amended Motion to Dismiss.

Administrative Law Judges have liberally allowed leave to amend pleadings, see, e.g., *D.F. Young, Inc. v. Wallenius Wilhelmsen Logistics*, Docket No. 23-14, 2024 WL 40246 (ALJ Order Granting Leave to Amend Complaint, January 23, 2024); *CCMA LLC v. Maersk A/S*, Docket No. 22-01, 2022 WL 458571 (ALJ Order Granting Motion to Amend Complaint, February 7, 2022); *MCS Industries, Inc. v. COSCO Shipping Lines Co., Ltd*, Docket No. 21-05, 2022 WL 458569 (ALJ Order on Motion to Amend Complaint, February 4, 2022).

Further, good cause exists to grant the within application because permitting OOCL to amend the Third-Party Complaint now, and suspend a ruling on SEC's Motion to Dismiss, will obviate the need for the parties to fully brief, and for the Presiding Officer to rule upon, two motions to dismiss.

OOCL therefore respectfully requests that an Order be issued granting the within Motion and directing that:

- OOCL be granted leave to file an Amended Third-Party Complaint within seven (7) days of the date of the Order;

- SEC be granted leave to file an Amended Motion to Dismiss within twenty (20) days of the date on which OOCL's Amended Third-Party Complaint is filed; and
- Opposition to and consideration of SEC's pending Motion to Dismiss be suspended, pending the filing of the Amended Third-Party Complaint and SEC's filing of an Amended Motion to Dismiss.

Alternatively, should the Presiding Officer deny the above application, OOCL requests a two (2) day extension of time to respond to the pending Motion to Dismiss. The evening of September 22 and the day of September 23, 2025, are religious holidays observed by undersigned Counsel for Respondents, who thus requests a short extension of time to prepare a response. A similar request was made with respect to OOCL's time to respond to Complainant's Motion to Dismiss the Amended Counterclaim. (FMC Dkt. #76). Counsel for OOCL therefore requests that, alternatively, an Order be issued extending the deadline for the filing of OOCL's response to SEC's Motion to Dismiss until September 25, 2025.

As described above, counsel for OOCL and SEC have conferred, and SEC does not oppose this application.

DATED: September 18, 2025

Respectfully submitted,

/s/ Rebecca A. Fenneman

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CERTIFICATE OF SERVICE

I certify that on the 18th day of September, 2025, a true and correct copy of the foregoing **CONSENT MOTION FOR EXTENSION OF TIME TO RESPOND** was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020.

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